UPSC INDIAN POLITY

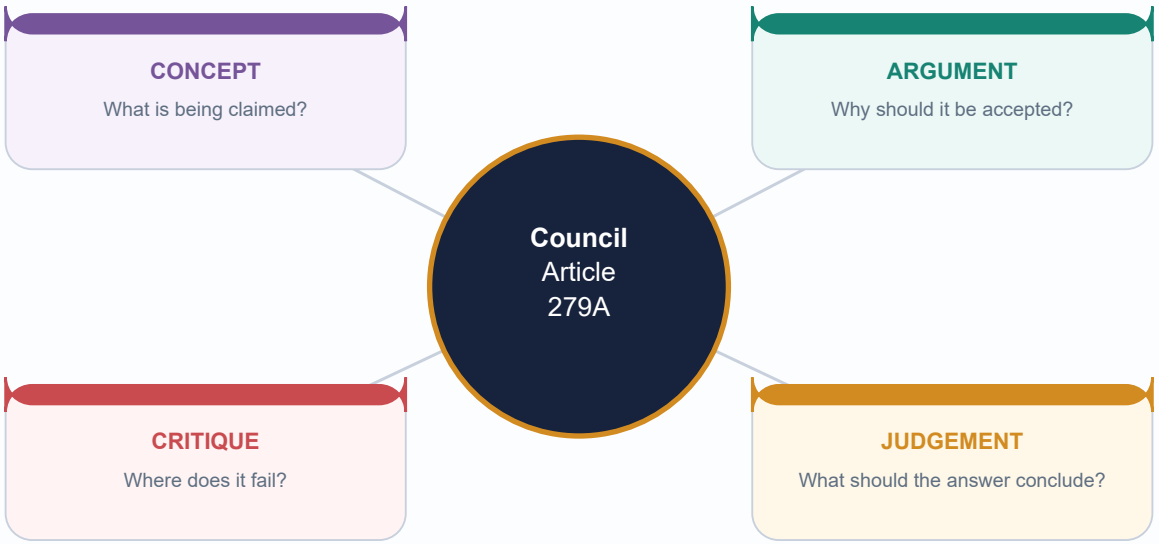
GST Council (Article 279A) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: GST-Council.md + 30_GST-Council.md

Learning cards: 35



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Basic (foundation) · **GS-II / GS-III**

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- □ = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/30_GST-Council.md — not required for any mark.*

MEMORY HOOK

□ = from book · □ = current link · = mnemonic. *Advanced: optional deeper detail in advanced/30_GST-Council.md — not required for any mark.*

MUST-KNOW FACTS

1. = from book · □ = current link · □ = mnemonic. *Advanced: optional deeper detail in advanced/30_GST-Council.md — not required for any mark.*

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Article	**Art 279-A**
Created by	**101st Amendment Act, 2016** (order 15 Sep 2016)
Nature	**Constitutional federal recommendatory forum**
Chair	**Union Finance Minister**

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

GS-II Indian Polity

INTRO & ORIGIN

The GST Council is a **joint Centre-state forum** that recommends GST rates, exemptions, model laws and related design through a special weighted vote. Legislatures/executives give legal effect to those recommendations; they are **not binding** (*Mohit Minerals*, 2022).

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

V

Dimension 1 The GST Council is a joint Centre-state forum that recommends GST rates, exemptions, model laws and related design through a special weighted vote. Le	**Dimension 2** □ Voting maths: decisions need 3/4 weighted votes; Centre = 1/3, all states = 2/3; quorum = ½.
Dimension 3 □ The Centre alone can block (3/4 needed) but cannot pass without states.	

STATIC THEORY

- □ **Voting maths:** decisions need **3/4 weighted votes**; **Centre = 1/3**, **all states = 2/3**; **quorum = ½**.

- □ The Centre alone can **block** (3/4 needed) but **cannot pass** without states.

MEMORY HOOK

Voting maths: decisions need 3/4 weighted votes; Centre = 1/3, all states = 2/3; quorum = ½. | The Centre alone can block (3/4 needed) but cannot pass without states.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

GS-II Indian Polity

INTRO & ORIGIN

□ Chair = **Union FM**; members = Union MoS Finance + one minister per state; **Vice-Chair chosen by states**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

V

Dimension 1 □ Chair = Union FM; members = Union MoS Finance + one minister per state; Vice-Chair chosen by states.	**Dimension 2** □ Revenue Secretary = ex-officio Secretary; CBIC chair = permanent non-voting invitee.
Dimension 3 □ Petrol, diesel, ATF, natural gas, crude are outside GST until the Council decides a date.	**Dimension 4** □ Recommended 5-year compensation to states (ended June 2022).

STATIC THEORY

- □ **Revenue Secretary** = ex-officio Secretary; **CBIC chair** = permanent non-voting invitee.
- □ Petrol, diesel, ATF, natural gas, crude are **outside GST** until the Council decides a date.
- □ Recommended **5-year compensation** to states (ended June 2022).

MUST-KNOW FACTS

1. Chair = **Union FM**; members = Union MoS Finance + one minister per state; **Vice-Chair chosen by states**.
2. **Revenue Secretary** = ex-officio Secretary; **CBIC chair** = permanent non-voting invitee.
3. Petrol, diesel, ATF, natural gas, crude are **outside GST** until the Council decides a date.
4. Recommended **5-year compensation** to states (ended June 2022).

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation · □ Current link

GS-II Indian Polity

NEWS TRIGGER

□ **56th Council recommendation (3 Sep 2025):** proposed broad **5% and 18%** rates plus a special **40%** de-merit rate, with most changes intended from **22 Sep 2025**; individual life and health insurance exemptions were recommended. Verify the applicable Gazette notification before stating any supply's legal rate. **Mohit Minerals (2022):** Council recommendations are **persuasive, not binding**.

INTRO & ORIGIN

Exam-ready treatment of □ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → □ Current link

HIGH

Foundation · Answer architecture (10/15/20-mark support)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Answer architecture (10/15/20-mark support).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Purpose: make this Core file independently able to answer GS-II/GS-III questions on the 101st Amendment, the GST Council's design and accommodative federalism — without opening Advanced.

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Answer architecture (10/15/20-mark support)

HIGH

Foundation · 5.0 Direct Mains demand owned by this Core file

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of 5.0 Direct Mains demand owned by this Core file.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

2023 · GS-II · Q15 *— Demand (neutral rendering): the significance of the 101st Constitutional Amendment Act and how far it reflects the accommodative spirit of federalism. Directive:* ***Explain the significance · 15 marks · 250 words. Core routing supersedes the older advanced/30_GST-Council.md pointer for this demand. Directive reading:*** *"Explain the significance" + "to what extent" = state the constitutional importance* ***and*** *deliver a graded judgement on the accommodativeness claim (not uncritical praise).* ***Executable route (15-mark, 250 words): Thesis:*** *the 101st Amendment (2016) created a genuinely* ***shared taxing space*** *— a rare pooling of sovereignty — that embodies accommodative/cooperative federalism, though its accommodativeness is qualified by asymmetric bargaining power.* ***Constitutional significance: Art 246A*** *gives* ***both*** *Parliament and State legislatures simultaneous power to tax goods and services, breaking the mutually exclusive Union/State-List design;* ***Art 269A*** *handles inter-State supply through* ***IGST****;* ***Art 279A*** *institutionalises the* ***GST Council****; the reform removed cascading and created one national market.* ***Accommodative design:*** *the voting formula (Centre* ***1/3****, States* ***2/3****,* ***3/4*** *of weighted votes to decide) means* ***neither side can act unilaterally****; the* ***GST (Compensation to States) Act, 2017*** *guaranteed States revenue protection for* ***five years****; States surrendered VAT, entry tax, octroi and others for a pooled share.* ***Judicial reinforcement:*** *Union of India v. Mohit Minerals (2022) held the Council's recommendations are* ***persuasive, not binding****, that both levels retain legislative power, and called for* ***"collaborative dialogue"****.* ***Qualification:*** *loss of independent State rate-setting, dependence on transfers, disputes over rate rationalisation and compensation-cess extension, and petroleum/alcohol/electricity kept outside GST temper the "accommodative" claim.* ***Verdict:*** *the Amendment institutionalised* ***pooled sovereignty*** *— India's most striking accommodative-federalism experiment — but its durability depends on honouring compensation, deciding by consensus and preserving the States' voice.*

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.0 Direct Mains demand owned by this Core file

HIGH

Foundation · 5.1 Demand and directive map

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Demand family	Typical directive signals	Answer spine to use
101st Amendment significance	"significance", "accommodative federalism", Explain	Shared taxing space → Council design → *Mohit Minerals* → qualified verdict
Cooperative-federalism laboratory	"laboratory of cooperative federalism", Examine	Voting design → compensation bargain → frictions → verdict
Fiscal autonomy of States	"erodes State autonomy", Critically examine	Surrendered taxes → dependence → *Mohit Minerals* counter → verdict
GST Council as an institution	"composition and voting", "binding?", Analyse	Art 279A composition → 1/3–2/3–3/4 formula → recommendatory nature
Petroleum/exclusions & reform	"bring petroleum under GST", Discuss	Current exclusions → Council's date power → fiscal trade-off
Compensation dispute	"GST compensation", "trust deficit", Comment	Statutory 5-year guarantee → June 2022 end → cess repurposing → trust

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.1 Demand and directive map

HIGH

Foundation · 5.2 Qualified thesis options

GS-II Indian Polity

INTRO & ORIGIN

The 101st Amendment is best understood as a pooling of sovereignty rather than a transfer of it: both the Union and the States gained a shared taxing power and simultaneously lost the freedom to set rates alone.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.2 QUALIFIED THESIS OPTIONS: RECALL MAP

5.2 Qualified thesis options

V

Dimension 1 The 101st Amendment is best understood as a pooling of sovereignty rather than a transfer of it: both the Union and the States gained a shared taxing	**Dimension 2** The GST Council is a genuine instrument of accommodative federalism in its voting design, but its accommodativeness is asymmetric because the Centre a
Dimension 3 Mohit Minerals converted a potential centralising instrument into a collaborative one by ruling the Council merely recommendatory, thereby protecting	**Dimension 4** GST traded the States' rate autonomy for a wider tax base and cascading-free market; whether that bargain remains "accommodative" depends on whether c

STATIC THEORY

- The GST Council is a genuine instrument of accommodative federalism in its voting design, but its accommodativeness is asymmetric because the Centre alone can block while no group of States can pass without the Centre.

- Mohit Minerals *converted a potential centralising instrument into a collaborative one by ruling the Council merely recommendatory, thereby protecting rather than diluting fiscal federalism.*

- GST traded the States' rate autonomy for a wider tax base and cascading-free market; whether that bargain remains "accommodative" depends on whether compensation commitments and consensus decision-making are honoured.

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.2 Qualified thesis options

HIGH

Foundation · 5.3 Mark-scaled structures

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Marks	Architecture	Evidence load
10	Thesis → shared taxing space (Art 246A) → voting design → *Mohit Minerals* → verdict	3 units incl. two Articles
15	Thesis → constitutional significance → accommodative design → judicial reinforcement → qualification → verdict	5–6 units
20	Thesis → Articles 246A/269A/279A → composition & voting → compensation architecture → *Mohit Minerals* → criticisms → graded verdict	6–8 units + a pooled-sovereignty paragraph

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.3 Mark-scaled structures

HIGH

Foundation · 5.4 Bank A — Constitutional architecture

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Provision	What it establishes	Mechanism / significance	Caution
□ **Art 246A**	Special power to tax goods and services	**Both** Parliament and State legislatures have **simultaneous** power — a break from the exclusive Union/State Lists	Parliament has **exclusive** power over **inter-State** supply
□ **Art 269A**	**IGST** on inter-State supply	Levied and collected by the **Centre**, then **apportioned** between the Centre and the States	Prevents each State taxing the same inter-State transaction
□ **Art 279A**	The **GST Council**	Constitutional recommendatory forum on rates, exemptions, model laws, thresholds	Recommendations are **not binding** (*Mohit Minerals*)
□ **Art 366(12A)**	Defines "goods and services tax"	A tax on supply of goods or services, except taxes on the supply of alcoholic liquor for human consumption	Petroleum products are within the definition but **kept out until the Council fixes a date**
□ **101st Amendment Act, 2016**	The enabling amendment	Subsumed most Central and State indirect taxes; created one national market	Presidential order constituted the Council on **15 Sep 2016**

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.4 Bank A — Constitutional architecture

HIGH

Foundation · 5.4 Bank A — Constitutional architecture

GS-II Indian Polity

INTRO & ORIGIN

Every unit: **claim → named Article → mechanism → limitation.**

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.4 Bank A — Constitutional architecture

HIGH

Foundation · 5.5 Bank B — Composition and the voting formula (mechanism and incentives)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Element	Value	Institutional incentive
□ Chairperson	**Union Finance Minister**	Central convening role
□ Members	Union MoS (Revenue/Finance) + one minister per State	Every State has a seat and a vote
□ Vice-Chairperson	Chosen **by the State members** among themselves	A federal counterweight in the chair structure
□ Quorum	½ of total members	Guards against thin-house decisions
□ Decision majority	**≥ 3/4 of the weighted votes** of members present and voting	Forces a broad coalition
□ Centre's weight	**1/3** of votes cast	□□ The Centre alone can **block** (3/4 needed) but **cannot pass** alone
□ States' weight	**2/3** of votes cast (shared equally among States present and voting)	No single State dominates; States must combine

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.5 Bank B — Composition and the voting formula (mechanism and incentives)

HIGH

Foundation · 5.5 Bank B — Composition and the voting formula (mechanism and incentives)

GS-II Indian Polity

INTRO & ORIGIN

Design insight: □□ the formula is engineered so that **neither the Centre alone nor the States alone can carry a decision** — the structural expression of "accommodative federalism". Acts are not invalidated by a vacancy or a non-material procedural defect.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.5 Bank B — Composition and the voting formula (mechanism and incentives)

HIGH

Foundation · 5.6 Bank C — Compensation architecture and its statutory basis

GS-II Indian Polity

INTRO & ORIGIN

 Claim → basis: States were guaranteed compensation for revenue loss for **five years** under the **GST (Compensation to States) Act, 2017**, funded by a **compensation cess** on demerit/luxury goods.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.6 BANK C — COMPENSATION ARCHITECTURE AND ITS STATUTORY BASIS: RECALL MAP

5.6 Bank C — Compensation architecture and its statutory basis

V

Dimension 1 Claim → basis: States were guaranteed compensation for revenue loss for five years under the GST (Compensation to States) Act, 2017, funded by a com	**Dimension 2** Mechanism: the cess pooled resources to top up any State whose GST revenue grew below a protected rate.
Dimension 3 Status caution: the five-year window ended in June 2022; the compensation cess has since been extended to service back-to-back loans raised during	**Dimension 4** Significance: the compensation guarantee was the political price that made States accept the loss of independent taxing power; its lapse is the sha

STATIC THEORY

- **Mechanism:** the cess pooled resources to top up any State whose GST revenue grew below a protected rate.

- **Status caution:** the five-year window **ended in June 2022**; the compensation cess has since been **extended to service back-to-back loans** raised during the pandemic — cite the June 2022 end and re-verify the cess's current end-date before quoting.

- **Significance:** the compensation guarantee was the political price that made States accept the loss of independent taxing power; its lapse is the sharpest test of the scheme's "accommodative" character.

MUST-KNOW FACTS

1. Claim → basis: States were guaranteed compensation for revenue loss for **five years** under the **GST (Compensation to States) Act, 2017**, funded by a **compensation cess** on demerit/luxury goods.

2. Mechanism: the cess pooled resources to top up any State whose GST revenue grew below a protected rate.

3. Status caution: the five-year window **ended in June 2022**; the compensation cess has since been **extended to service back-to-back loans** raised during the pandemic — cite the June 2022 end and re-verify the cess's current end-date before quoting.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.6 Bank C — Compensation architecture and its statutory basis

HIGH

Foundation · 5.7 Accommodative federalism and Mohit Minerals — mechanism and consequences

GS-II Indian Polity

INTRO & ORIGIN

Claim: GST embodies accommodative/cooperative federalism. **Provision:** the Art 279A voting design + Art 246A's shared power. **Mechanism:** a permanent institutional forum forces the Union and the States to negotiate rates and design continuously rather than legislate unilaterally. **Consequence:** □□ it converts indirect taxation into a **standing, collaborative bargain**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.7 ACCOMMODATIVE FEDERALISM AND MOHIT MINERALS — MECHANISM AND CONSEQUENCES: RECALL MAP

5.7 Accommodative federalism and Mohit Minerals — mechanism and consequences

V

Dimension 1 Claim: GST embodies accommodative/cooperative federalism. Provision: the Art 279A voting design + Art 246A's shared power. Mechanism: a permanent inst	**Dimension 2** □ Case as an exact proposition: in Union of India v. Mohit Minerals (2022) the Supreme Court held that the recommendations of the GST Council are not
Dimension 3 □□ Analytical significance: the ruling protected fiscal federalism — a "binding" reading would have subordinated State legislatures to the Council; th	

STATIC THEORY

- □ **Case as an exact proposition:** in **Union of India v. Mohit Minerals (2022)** the Supreme Court held that the **recommendations of the GST Council are not binding** on the Union and the States and have only **persuasive value**, because **both** Parliament and the State legislatures possess **simultaneous power** to legislate on GST under **Art 246A**; the Court urged the Council to function through "**collaborative dialogue**". (The dispute concerned IGST on ocean freight on reverse charge, which the Court struck down.)

- □□ **Analytical significance:** the ruling **protected** fiscal federalism — a "binding" reading would have subordinated State legislatures to the Council; the "persuasive" reading keeps the States' constitutional power intact.

MUST-KNOW FACTS

1. Case as an exact proposition: in **Union of India v. Mohit Minerals (2022)** the Supreme Court held that the **recommendations of the GST Council are not binding** on the Union and the States and have only **persuasive value**, because **both** Parliament and the State legislatures possess **simultaneous power** to legislate on GST under **Art 246A**; the Court urged the Council to function through "**collaborative dialogue**". (The dispute concerned IGST on ocean freight on reverse charge, which the Court struck down.)

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.7 Accommodative federalism and Mohit Minerals — mechanism and consequences

HIGH

Foundation · 5.8 Criticism, counter-argument and variation

GS-II Indian Polity

INTRO & ORIGIN

Loss of fiscal autonomy: □□ States surrendered independent rate-setting over most indirect taxes; they can no longer tailor rates to local revenue needs.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.8 CRITICISM, COUNTER-ARGUMENT AND VARIATION: RECALL MAP

5.8 Criticism, counter-argument and variation

V

Dimension 1 Loss of fiscal autonomy: □□ States surrendered independent rate-setting over most indirect taxes; they can no longer tailor rates to local revenue nee	**Dimension 2** Dependence on transfers: □□ States rely on IGST apportionment, the divisible pool and (formerly) compensation, deepening vertical fiscal imbalance.
Dimension 3 Asymmetric bargaining: □□ the Centre's 1/3 weight plus a few aligned States can block any change; smaller States have little individual leverage.	**Dimension 4** Rate-setting and exclusions disputes: □□ friction over rate rationalisation (GST 2.0), and over keeping petroleum, natural gas and electricity outside

STATIC THEORY

- **Dependence on transfers:** □□ States rely on IGST apportionment, the divisible pool and (formerly) compensation, deepening vertical fiscal imbalance.

- **Asymmetric bargaining:** □□ the Centre's 1/3 weight plus a few aligned States can block any change; smaller States have little individual leverage.

- **Rate-setting and exclusions disputes:** □□ friction over rate rationalisation (GST 2.0), and over keeping **petroleum, natural gas and electricity** outside GST, recur.

- **Compensation dispute:** □ □□ the end of the five-year guarantee (June 2022) and the demand for extension are the leading "coercive vs cooperative federalism" grievances.

- **Counter-argument:** □□ *Mohit Minerals*, the near-unanimous consensus practice of the Council, and the removal of cascading and inter-State barriers show the accommodative design working in substance, not just form.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.8 Criticism, counter-argument and variation

HIGH

Foundation · 5.9 Verdict scaffolds

GS-II Indian Polity

INTRO & ORIGIN

Significance verdict: "The 101st Amendment is India's boldest pooling of taxing sovereignty; its accommodative character is real in design and, after *Mohit Minerals*, secure in law, but conditional in practice on honoured compensation and consensus."

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.9 VERDICT SCAFFOLDS: RECALL MAP

5.9 Verdict scaffolds

V

Dimension 1 Significance verdict: "The 101st Amendment is India's boldest pooling of taxing sovereignty; its accommodative character is real in design and, after	**Dimension 2** Autonomy verdict: "GST did not centralise indirect taxation so much as collectivise it; the States lost rate autonomy but gained a permanent seat at a
Dimension 3 Reform verdict: "The unfinished agenda — petroleum inclusion, a durable compensation settlement and genuine consensus — will decide whether the Counci	

STATIC THEORY

- **Autonomy verdict:** "GST did not centralise indirect taxation so much as collectivise it; the States lost rate autonomy but gained a permanent seat at a table where the Centre cannot act alone."

- **Reform verdict:** "The unfinished agenda — petroleum inclusion, a durable compensation settlement and genuine consensus — will decide whether the Council remains a laboratory of cooperative federalism or slides toward coercive federalism."

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.9 Verdict scaffolds

HIGH

Foundation · 5.10 Prelims close-option distinctions

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Confusion pair	Correct discrimination
Voting threshold	Decisions need **≥ 3/4 of weighted votes**, not a simple majority
Centre's vote weight	**1/3** (all States together = **2/3**) — not 1/2
Quorum vs Centre's weight	Quorum = ½ of members; the **1/3** is the Centre's *vote weight*
Council status	**Constitutional** body (Art 279A) — not statutory
Who chairs	**Union Finance Minister** — not the PM
Binding force	Recommendations are **persuasive, not binding** (*Mohit Minerals*, 2022)
Petroleum under GST	**Outside GST** until the Council fixes a date
Amendment number	GST = **101st** Amendment (2016); do not confuse with the 122nd Bill number

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → 5.10 Prelims close-option distinctions

HIGH

Foundation · 5.11 Factual-risk and current-status controls

GS-II Indian Polity

NEWS TRIGGER

 GST is the **101st** Constitutional Amendment Act (2016); the enabling **Bill** was numbered the 122nd — do not present the Bill number as the Act number. The GST Council is **constitutional** (Art 279A); its recommendations are **not binding** (*Mohit Minerals*, 2022) — never state them as binding commands. Voting: Centre **1/3**, States **2/3**, decision **≥ 3/4** of weighted votes; quorum ½.

INTRO & ORIGIN

  The **56th Council meeting release (3 Sep 2025)** recommended broad **5% and 18%** rates plus a special **40%** de-merit rate, mostly intended from **22 Sep 2025**. A recommendation is not self-executing: verify the relevant Gazette notification and effective date.

Foundation learning layer: concepts → constitutional detail → UPSC application.

5.11 FACTUAL-RISK AND CURRENT-STATUS CONTROLS: RECALL MAP

5.11 Factual-risk and current-status controls

V

Dimension 1
  The 56th Council meeting release (3 Sep 2025) recommended broad 5% and 18% rates plus a special 40% de-merit rate, mostly intended from 22 Sep 202

Dimension 2
  GST compensation's statutory five-year window ended in June 2022; the official 56th-meeting material retained cess on specified tobacco-related go

Dimension 3
  Do not claim petroleum, alcohol for human consumption or electricity are under GST; alcoholic liquor for human consumption is constitutionally excl

STATIC THEORY

- □ □ GST compensation's statutory five-year window ended in **June 2022**; the official 56th-meeting material retained cess on specified tobacco-related goods until the related loan and interest liabilities are discharged; do not state one universal end-date.

- □□ Do not claim petroleum, alcohol for human consumption or electricity are under GST; alcoholic liquor for human consumption is **constitutionally excluded**, the others are **kept out until the Council decides**.

MUST-KNOW FACTS

1. □ The **56th Council meeting release (3 Sep 2025)** recommended broad **5% and 18%** rates plus a special **40%** de-merit rate, mostly intended from **22 Sep 2025**. A recommendation is not self-executing: verify the relevant Gazette notification and effective date.

2. □ GST compensation's statutory five-year window ended in **June 2022**; the official 56th-meeting material retained cess on specified tobacco-related goods until the related loan and interest liabilities are discharged; do not state one universal end-date.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → 5.11 Factual-risk and current-status controls

HIGH

Foundation · Semantic-completeness ownership and PYQ control

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Semantic-completeness ownership and PYQ control.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Constitutional map: *the 101st Amendment inserted Articles 246A, 269A and 279A and amended related provisions. Article 246A creates simultaneous Union- State GST competence subject to Parliament's exclusive inter-State field; Article 269A governs inter-State levy/collection and apportionment; Article 279A creates the recommendatory Council.* ***Composition:*** *the Union Finance Minister chairs; the Union Minister of State in charge of Revenue or Finance and one finance/taxation or nominated Minister from each State are members. State members may choose a Vice-Chairperson. Nirmala Sitharaman remains the official Union Finance Minister/current Chair on the 5 September 2026 control date.* ***Voting:*** *one-half of total membership is quorum. At a meeting the Union has one-third of total votes cast, States together two-thirds, and a proposal requires at least three-fourths of weighted votes of members present and voting. Quorum, vote weight and decision threshold must never be conflated.* ***Procedure rules:*** *the official Conduct of Business Rules provide ordinarily seven days' meeting notice, agenda notes at least three days before the meeting and a two-day emergency-meeting route with Chair approval. The Vice-Chairperson has a two-year term or until ceasing to be a member/resigning, whichever is earlier.* ***Secretariat boundary:*** *the Revenue Secretary is ex-officio Secretary and the CBIC Chair is a permanent non-voting invitee by the 2016 Cabinet decision; neither becomes a voting constitutional member. GSTN and GSTAT are different institutions.* ***Recommendation-to-law chain:*** *a Council recommendation is not a tax rate by itself. Parliament/State law and valid delegated notifications give legal effect subject to the governing statute and constitutional competence.* ***Judicial rule:*** *Union of India v Mohit Minerals (2022) holds Council recommendations persuasive rather than binding because Union and States hold simultaneous Article 246A legislative power. The ocean-freight levy failed on the statutory/constitutional analysis; the case does not erase the Council.* ***Current meeting:*** *the official 56th GST Council release dated 3 September 2025 is the latest meeting release located by 5 September 2026. It recommended broad 5 and 18 per cent rates plus a special 40 per cent demerit rate, with most changes intended from 22 September 2025. Every supply-specific legal rate still requires the applicable CBIC notification.* ***Compensation status:*** *the statutory five-year State-compensation entitlement ended in June 2022. Under the 56th-meeting official material, compensation cess continued on specified tobacco-related goods until discharge of the related loan and interest liabilities; no universal post-2022 entitlement is implied.* ***Institution/PYQ firewall:*** *the GST Council does not distribute the divisible pool (Finance Commission), administer GST (tax administrations), operate the network (GSTN) or adjudicate appeals (GSTAT). The direct 2023 accommodative- federalism Mains demand and routed GST/fiscal-federalism demands retain their verified ownership.*

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Semantic-completeness ownership and PYQ control

HIGH

Advanced · Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

Subject: Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II / GS-III

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

V

Dimension 1 Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II / GS-III	**Dimension 2** Grounded in: Indian Polity by M. Laxmikant, Ch. 46 (direct check of the local Sixth Revised Edition PDF) + official GST Council update.
Dimension 3 □ = from source book · □□ = inference / case law · □ = current affairs.	**Dimension 4** Companion: basic/GST-Council.md.

STATIC THEORY

- **Grounded in:** Indian Polity by M. Laxmikant, Ch. 46 (direct check of the local Sixth Revised Edition PDF) + official GST Council update.

- □ = from source book · □□ = inference / case law · □ = current affairs.

- *Companion: basic/GST-Council.md.*

MUST-KNOW FACTS

1. = from source book · □□ = inference / case law · □ = current affairs.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Core Foundation

HIGH

Advanced · PART A — ESTABLISHMENT □

GS-II Indian Polity

INTRO & ORIGIN

□ The **101st Amendment Act, 2016** introduced **GST** and inserted **Article 279-A**, empowering the **President** to constitute the **GST Council** by order (issued **15 Sept 2016**).

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — ESTABLISHMENT : RECALL MAP

PART A — ESTABLISHMENT

V

Dimension 1 The 101st Amendment Act, 2016 introduced GST and inserted Article 279-A, empowering the President to constitute the GST Council by order (issued 15	**Dimension 2** A constitutional federal recommendatory forum central to GST design — a model
Dimension 3 of cooperative federalism. Its recommendations require legal implementation and are not independently binding commands.	**Dimension 4** Secretariat at New Delhi; the Union Revenue Secretary is the ex-officio Secretary; the CBIC/CBEC

STATIC THEORY

- A **constitutional federal recommendatory forum** central to GST design — a model

- of cooperative federalism. Its recommendations require legal implementation and are not independently binding commands.

- Secretariat at **New Delhi**; the **Union Revenue Secretary** is the **ex-officio Secretary**; the **CBIC/CBEC

- chairperson **is a** permanent invitee (non-voting)**.

MUST-KNOW FACTS

1. The **101st Amendment Act, 2016** introduced **GST** and inserted **Article 279-A**, empowering the **President** to constitute the **GST Council** by order (issued **15 Sept 2016**).

2. A **constitutional federal recommendatory forum** central to GST design — a model

3. Secretariat at **New Delhi**; the **Union Revenue Secretary** is the **ex-officio Secretary**; the **CBIC/CBEC

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART A — ESTABLISHMENT

HIGH

Advanced · PART B — COMPOSITION

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Member	Role
Union Finance Minister	**Chairperson**
Union MoS (Revenue/Finance)	Member
State Minister (Finance/Taxation or nominated) from **each state**	Members

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART B — COMPOSITION

HIGH

Advanced · PART B — COMPOSITION □

GS-II Indian Polity

INTRO & ORIGIN

□ The **state members choose one among themselves as Vice-Chairperson** (and decide his term).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. The **state members choose one among themselves as Vice-Chairperson** (and decide his term).

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → PART B — COMPOSITION □

HIGH

Advanced · PART C — WORKING (voting maths) □□

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Rule	Value
□ **Quorum**	½ of total members
□ **Decision majority**	**≥ 3/4 of weighted votes** of members present & voting
□ **Centre's weight**	**1/3** of votes cast
□ **All states combined**	**2/3** of votes cast

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → PART C — WORKING (voting maths) □□

HIGH

Advanced · PART C — WORKING (voting maths) □□

GS-II Indian Polity

INTRO & ORIGIN

□ **Design insight:** the Centre alone (1/3) can **block** any resolution (needs 3/4 to pass), but **cannot pass** anything without states — a deliberate federal balance. Acts are **not invalidated** by vacancies, defects in appointment, or non-material procedural irregularities.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → PART C — WORKING (voting maths) □□

HIGH

Advanced · PART D — FUNCTIONS □

GS-II Indian Polity

INTRO & ORIGIN

Recommends to Centre & states on: taxes/cesses/surcharges **subsumed** in GST; goods/services **taxed or exempt**; **model GST laws, place-of-supply** principles; **threshold turnover** for exemption; **rates (incl. floor rates with bands)**; special disaster rates; special provisions for **NE & hill/special-category states**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART D — FUNCTIONS □: RECALL MAP

PART D — FUNCTIONS □

V

Dimension 1 Recommends to Centre & states on: taxes/cesses/surcharges subsumed in GST; goods/services taxed or exempt; model GST laws, place-of-supply principles;	**Dimension 2** □ Recommends the date to bring petroleum crude, diesel, petrol, natural gas, ATF under GST (currently
Dimension 3 outside GST).	**Dimension 4** □ Must set up a dispute-resolution mechanism (Centre-state / state-state).

STATIC THEORY

- □ Recommends **the date** to bring **petroleum crude, diesel, petrol, natural gas, ATF** under GST (currently

- outside GST).

- □ Must set up a **dispute-resolution mechanism** (Centre-state / state-state).

- □ Recommended **compensation to states** for revenue loss for **5 years** (GST Compensation Act, 2017).

MUST-KNOW FACTS

1. Recommends **the date** to bring **petroleum crude, diesel, petrol, natural gas, ATF** under GST (currently

2. Must set up a **dispute-resolution mechanism** (Centre-state / state-state).

3. Recommended **compensation to states** for revenue loss for **5 years** (GST Compensation Act, 2017).

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART D — FUNCTIONS □

HIGH

Advanced · PART E — □ CURRENT DEVELOPMENTS □

GS-II Indian Polity

NEWS TRIGGER

□ **GST 2.0 (56th GST Council, effective 22 Sept 2025):** the old four-slab structure (5/12/18/28%) was recommended a broad **5% merit rate and 18% standard rate**, plus a special **40% de-merit rate** (tobacco, pan masala, aerated drinks, luxury vehicles). Individual health and life insurance exemptions were recommended. Applicable liability requires the relevant Gazette notification; do not treat the press release as self-executing law. □ □□ **Mohit Minerals case (SC, 2022):** GST Council recommendations are **only persuasive, NOT binding** on the

INTRO & ORIGIN

Centre or states (both have simultaneous power to tax) — a landmark on **fiscal federalism** and states' autonomy.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART E — □ CURRENT DEVELOPMENTS □: RECALL MAP

PART E — □ CURRENT DEVELOPMENTS □

V

Dimension 1 Centre or states (both have simultaneous power to tax) — a landmark on fiscal federalism and states' autonomy.	**Dimension 2** □ □□ End of GST compensation (June 2022) & states' demand for extension; compensation cess now servicing
Dimension 3 loans / repurposed.	

STATIC THEORY

- □ □□ **End of GST compensation (June 2022)** & states' demand for extension; **compensation cess** now servicing

- loans / repurposed.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → PART E — □ CURRENT DEVELOPMENTS □

HIGH

Advanced · UPSC Traps

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: GST Council decisions need a simple majority

CORRECT: 3/4 of weighted votes.

WRONG: Centre's vote weight is 1/2

CORRECT: 1/3 (all states together = 2/3).

WRONG: GST Council recommendations are binding

CORRECT: only recommendatory/persuasive (Mohit Minerals, 2022).

WRONG: Petrol & diesel are already under GST

CORRECT: outside GST until the Council fixes a date.

WRONG: GST Council is a statutory body

CORRECT: it is a **constitutional body** (Art 279-A).

WRONG: The PM chairs the GST Council

CORRECT: the **Union Finance Minister**.

WRONG: Quorum is 1/3

CORRECT: ½ of members (the 1/3 refers to the Centre's *vote weight*).

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced · □ CA hooks

GS-II Indian Polity

NEWS TRIGGER

□ **GST 2.0** two-slab rationalisation — consumption boost vs revenue implication (~₹48,000 cr). □ GST on **petroleum products** — long-pending inclusion debate. □ **Cooperative vs "coercive" federalism** — states' voice in the Council post-compensation.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK
GST Council (Article 279A) — ADVANCED / COMPLETE → □ CA hooks

HIGH

Advanced · Mains angles

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"The GST Council is a laboratory of cooperative federalism." Examine, using the voting design and Mohit Minerals. Should petroleum products be brought under GST? Analyse the fiscal-federal trade-offs. GST 2.0 rate rationalisation: simplification vs revenue autonomy of states. less than !-- BEGIN GENERATED PYQ INTEGRATION: 2018-2023 -->

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Mains angles

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Year	Paper	Q	PYQ demand (neutral rendering)	Directive / format	Source status	Owner requirement
2023	GS-II	15	101st Constitutional Amendment Act and acco mmodative federalism	Explain the significance · 15 marks · 250 words	Routed to owning topic; word limit taken from the instruction block	Prepare context, core dimensions, evidence/exa mples, counterpoint and a concise conclusion.

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · Historical PYQ Integration (2018-2023)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of Historical PYQ Integration (2018-2023).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Status: *Question-level PYQ demand is integrated into this owner.* ***Provenance:*** *Audited local official-paper routing ledgers: _PYQ-ROUTING-MAINS-GS1-GS2-ESSAY-2018-2023.md.* ***Years represented:*** *2023* ***Paper(s):*** *GS-II* ***Routed question demands:*** *1*

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → Historical PYQ Integration (2018-2023)

HIGH

Advanced · What this owner must now support

GS-II Indian Polity

INTRO & ORIGIN

101st Constitutional Amendment Act and accommodative federalism

Advanced learning layer: concepts → constitutional detail → UPSC application.

WHAT THIS OWNER MUST NOW SUPPORT: RECALL MAP

What this owner must now support

V

Dimension 1 101st Constitutional Amendment Act and accommodative federalism	**Dimension 2** The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not cl
Dimension 3 less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→	

STATIC THEORY

- The table integrates the examinable demand and paper metadata. It does not turn an unkeyed objective question into a solved answer, and it does not claim that lexical presence alone proves full conceptual sufficiency.

- less than !-- END GENERATED PYQ INTEGRATION: 2018-2023 -→

MAINS ANGLE

STUDY LINK

GST Council (Article 279A) — ADVANCED / COMPLETE → What this owner must now support

End of Register Notes - UPSC Agent / Copilot CLI